

SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS
ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST
VIRGINIA

Proceeding: Joint discovery planning.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt
Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Joint Rule 26(f) Report and Discovery Plan

Filed June 16, 2025 — District ECF No. 22

The parties conferred by secure videoconference on June 9, 2025. Asterglen appeared through its corporate counsel and litigation representative. Copper Kestrel and Meridian Silt appeared through their respective corporate counsel and representatives. The participants discussed the claims, defenses, preservation duties, disclosures, settlement posture, electronically stored information, proposed discovery limits, and a practical sequence for depositions and dispositive motions.

Asterglen seeks \$480,000 on Count I against Copper Kestrel for alleged breach of the April 15, 2024 Pilot License and \$360,000 on Count II against Meridian Silt for alleged interference. Copper Kestrel denies liability and maintains a \$120,000 counterclaim arising from Asterglen's July 22 service disablement. Meridian denies inducing any breach. All parties acknowledge that Count II and the counterclaim share witnesses and communications with Count I, although they disagree about the legal effect of that overlap.

No party requests bifurcation of discovery. The parties propose coordinated fact discovery because the same June and July communications concern authorization, performance, notice, cure feasibility, causation, and damages.

Claims, defenses, and disputed factual questions

The Pilot License signed April 15, 2024 identified twelve licensed terminals. Section 9.2 requires written notice describing an asserted material breach and a fifteen-calendar-day opportunity to cure before either termination for breach or a demand for breach damages. The parties agree on that text but dispute its application.

Asterglen contends Copper Kestrel provisioned twenty-nine additional terminal identifiers without an executed change order, bringing the total to forty-one. Asterglen further contends the June 10 written response permitted only a controlled load test and did not authorize production deployment. Copper Kestrel answers that the July 8 conference included oral permission to continue while paperwork was completed. Asterglen disputes that account and denies that its project manager approved production use or waived a written amendment.

The parties will investigate what each participant said on July 8, the authority of the speakers, and whether later conduct corroborates either recollection. They will also examine the July 18 compliance audit, the July 22 termination and \$480,000 demand, the absence of any cure interval in that communication, the asserted ability to reduce the configuration within three business days, and Meridian's work through July 25.

Copper Kestrel's counterclaim places the claimed \$120,000 interruption loss at issue. Meridian's defense places Asterglen's communications, Copper Kestrel's instructions, and the integration team's understanding at issue.

Documents and electronically stored information

The parties will exchange the operative license, schedules, proposed June 3 change order, June 10 written conditions, Meridian's June 14 statement of work, provisioning logs through July 1, July 8 notes and follow-up messages, the July 18 audit, and the July 22 through July 25 communications. Production will preserve message headers, authors, recipients, timestamps, attachment relationships, revision history, and native spreadsheet formulas when reasonably available.

Asterglen will search the custodial files of its project-management, compliance, account, and finance functions. Copper Kestrel will search its operations, procurement, information-technology, and finance functions. Meridian will search its engagement-management and integration-engineering files. Each party may identify one additional custodian on a particularized showing that the proposed source is likely to contain nonduplicative material.

BeaconRoute event data will be produced in delimited form with a data dictionary sufficient to identify terminal identifiers, creation dates, status changes, and access events. The parties will not treat a test identifier as proof of production use merely because it appears in a provisioning table. Any party relying on the table must identify the fields and surrounding evidence supporting its characterization.

The parties will preserve the forty-one-identifier configuration and the later reduction evidence. They will meet before seeking judicial relief about search terms, inaccessible sources, privilege logging, redaction, or format.

Interrogatories, requests, and testimony

Each side may serve up to twenty-five interrogatories, including discrete subparts counted under the governing rule, and up to forty requests for admission. Requests for production are limited to forty per side absent stipulation or order. Written discovery should focus on the license terms, authorization, provisioning, cure, causation, damages, and the relationship among the remaining claims.

Asterglen anticipates a corporate deposition of Copper Kestrel concerning terminal provisioning, the July 8 discussion, the July 18 audit response, cure feasibility, and claimed interruption loss. Copper Kestrel anticipates a corporate deposition of Asterglen concerning the license, the June 10 conditions, the project manager's authority, the July 22 decision, and the \$480,000 calculation. Meridian anticipates testimony about Asterglen's communications and the same service events. Meridian will present an integration witness concerning its June 14 scope and work through July 25.

The parties may take seven depositions each, excluding agreed records-custodian declarations. A deposition noticed by more than one defendant will count once if conducted jointly. Examination should distinguish personal knowledge from a corporate designation and should identify documents used to refresh recollection.

No participant concedes the truth of another participant's July 8 account. The parties agree only that the call occurred, that oral permission is disputed, and that the issue must be tested through admissible evidence rather than assumed in a discovery response.

Schedule, experts, and certification

The parties propose completion of fact discovery by October 15, 2025. Because the principal questions concern documents, percipient testimony, contract administration, and accounting entries, no retained expert is presently expected on authorization or cure. A party seeking technical or damages expert testimony will disclose the subject, basis, and materials under the scheduling order and will promptly confer about any corresponding adjustment.

Dispositive motions directed to fewer than all claims must identify the precise claim and requested relief. A movant relying on the shared July communications must cite the evidence and state whether the same evidence also bears on Count II or Copper Kestrel's counterclaim. Opposition papers must separately identify genuine disputes and the portions of the evidentiary materials supporting them.

The parties have discussed settlement without resolving the action. They remain willing to participate in mediation after the key corporate and engineering testimony is completed. Nothing in this report discloses confidential settlement communications or limits a later good-faith request for judicial assistance.

Counsel certify that they participated in the conference, reviewed this joint report, and authorized its filing. By submitting the report, no party waives an objection to relevance, proportionality, privilege, admissibility, contractual interpretation, or the existence and scope of any July 8 permission. The proposed plan preserves a common evidentiary sequence while leaving every contested inference for adjudication.